📘 CLJ 1 INTRODUCTION TO THE CRIMINAL JUSTICE SYSTEM (CJS)

🔷 Definition

The **Criminal Justice System (CJS)** refers to the total of instruments, institutions, and processes that society uses to prevent and control crime and delinquency.
It is the **machinery of the State** that enforces rules of conduct necessary to protect life and property, and to maintain peace and order.
It also encompasses all measures used to enforce standards of conduct that safeguard individuals and promote community well-being.

🔷 Models of Criminal Justice

1. Due Process Model

- The accused is **presumed innocent** until proven guilty beyond reasonable doubt.
- The burden is on the **public prosecutor** to prove guilt.
- This is the **model currently used in the Philippines**.

2. Crime Control Model

- The accused is **presumed guilty** and must prove their innocence.
- This was **prevalent during ancient times**.

🔷 Five Stages of the Criminal Justice Process

1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

📘 CRIMINAL LAW AND THE CJS

- **Criminal Law** serves as the foundation of the Criminal Justice System.
- Only **violations of Criminal Law** are considered and processed in the CJS.
- If no crime or violation exists, the criminal justice process does not operate.

Definition

Criminal Law is that branch of **public law** which defines crimes, explains their nature, and provides for their punishment.

🔷 Classifications of Criminal Law

A. Substantive Criminal Law

- Defines the elements necessary for an act to constitute a crime and thus be punishable.

B. Procedural Criminal Law

- Provides the procedures for enforcing substantive criminal law.

🔷 Basic Principles of Criminal Law in CJS

1. Presumption of Innocence

- Every accused is considered **innocent until proven guilty**.
- The accused retains full rights until guilt is determined by the court or admitted voluntarily.
- This right is guaranteed under the **Philippine Constitution**.

2. Burden of Proof

- The government must prove guilt **beyond reasonable doubt**.
- Ensures that only the guilty are punished.
- If guilt is not established beyond reasonable doubt, the accused must be acquitted.

📘 THE CRIMINAL IN THE CJS

The **criminal** is the central figure in the Criminal Justice System.

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Nomenclature of a Person in the CJS:

1. **Suspect** – A person implicated in the commission of a crime, during police investigation.
2. **Respondent** – A person under preliminary investigation or inquest proceeding before the Prosecutor's Office.
3. **Accused** – A person formally charged in court and facing trial.
4. **Convict** – A person found guilty beyond reasonable doubt, after judgment has been rendered.
5. **Criminal** – A person who has undergone the full process and served the sentence imposed.

📘 THE FIVE PILLARS OF THE PHILIPPINE CRIMINAL JUSTICE SYSTEM

1. Law Enforcement
2. Prosecution
3. Courts
4. Corrections
5. Community

🔷 Comparison: U.S. Criminal Justice System

- Law Enforcement
- Courts
- Corrections

📘 PHILOSOPHIES BEHIND THE CJS

1. Adversarial Approach

- Assumes **innocence**.
- The **prosecutor** bears the burden of proof.
- Emphasis is placed on **proper legal procedures**.

2. Inquisitorial Approach

- Assumes **guilt**.
- The **accused** has the burden of proof.
- Emphasis is placed on **securing a conviction**.

📘 INTRODUCTION TO THE CRIMINAL JUSTICE SYSTEM (CJS)

🔷 Definition

The **Criminal Justice System (CJS)** refers to the total set of institutions, instruments, and processes used by society to **prevent and control crime**.
It is the **machinery of the State** tasked to:

- Enforce rules of conduct,
- Protect life and property, and
- Maintain peace and order.

It also includes all measures that uphold standards of conduct necessary to protect individuals and promote community well-being.

🔷 Models of Criminal Justice

1. Due Process Model

- The accused is **presumed innocent** until proven guilty beyond reasonable doubt.
- The **prosecution** bears the burden of proof.
- This is the **model used in the Philippines** today.

2. Crime Control Model

- The accused is **presumed guilty** and must prove innocence.
- This was **prevalent in ancient times**.

🔷 Five Stages of the Criminal Justice Process

1. Arrest
2. Charging

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3. Adjudication
4. Sentencing
5. Corrections

📘 CRIMINAL LAW AND THE CJS

- **Criminal Law** is the **basis** of the Criminal Justice System.
- Only **violations of criminal law** are processed in the CJS.
- Without crime, the CJS process does not operate.

Definition

Criminal Law is that branch of **public law** which defines crimes, explains their nature, and prescribes punishment.

🔷 Classifications of Criminal Law

A. Substantive Criminal Law

- Defines the elements required for an act to constitute a crime.

B. Procedural Criminal Law

- Prescribes the methods and processes for enforcing substantive criminal law.

🔷 Principles of Criminal Law in the CJS

1. Presumption of Innocence

- The accused remains **innocent until proven guilty**.
- Rights are preserved until guilt is determined by the court or admitted.
- Guaranteed under the **1987 Philippine Constitution**.

2. Burden of Proof

- The **State** must prove guilt beyond reasonable doubt.
- Protects against wrongful conviction.
- If doubt exists, the accused must be acquitted.

📘 THE CRIMINAL IN THE CJS

The **criminal** is the main figure in the Criminal Justice System.

Nomenclature of a Person in the CJS:

1. **Suspect** – During police investigation.
2. **Respondent** – During preliminary investigation at the Prosecutor's Office.
3. **Accused** – Once formally charged in court.
4. **Convict** – Once found guilty by final judgment.
5. **Criminal** – After serving the imposed sentence.

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